

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

State of Oregon vs Barry Trenell Washington

ORDER

Case No: 25CN02140

Proceeding:

FTR Courtroom: LEC1

☐ Citation ☐ Release Agreement

The following persons appeared:

Defendant: Barry Trenell Washington

Attorneys: DA: Khachaturova

Defense Atty: Blaney

☒	Appointed:	☐	CLG	☐	HLG	☐	MPD	☐	ODAC	☐	OPDC	☐	R&A
☐	Retained:	☐	To be Retained		☐	Waived Attorney							
☐	Interpreter:	☐	Advisory Counsel:										
☐	Spanish	☐	Other:	☐	DUII	☐	DEM	☐	Deferred Sent. Counsel				

Defendant:

If you are arraigned on a Domestic Violence or Sex Crime, you are **prohibited** from contacting the named victim even while in custody.

☐	Appeared by counsel	☒	In Custody	☐	Out of Custody
☐	Reset to:	at the request of:			
☐	Name corrected – <i>True name</i> :				
☐	Waived speedy constitutional trial/ 60-day rights for this continuance or waiver of 14-day for Probation Viol. Hrg.				
☐	Waived Extradition	☐	Requested Governors Warrant		

Arraignment:

☒	Defendant given copy of charging instrument	☒	Arraigned	☒	Rights Given	☐	Waived
☐	Book and release unless a crime under Measure 11, ORS 137.700, including out-of-county bookings. New release agreement with standard conditions is required for out-of-county book and release.						

Preliminary Hearing:

☐	Prelim Waived By:	☐	Probable cause found on Ct(s):	☐	Probable cause not found on Ct(s):
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Plea:

☐	Not Guilty	☐	Guilty	☐	Deny	☐	Admit	☐	No Contest
☐	Failed to Appear								
☐	Revoke Release	☐	Bench Warrant Ordered	☐	Arrest Warrant Ordered	☐	Security Amt:\$		
☐	Judgment of Dismissal								
☐	Other:								

Next Court Appearance:

FILED
OREGON JUDICIAL DEPT
WASHINGTON COUNTY

2025 MAY 13 A 11: 28

IN THE CIRCUIT COURT OF THE STATE OF OREGON FOR WASHINGTON COUNTY

STATE OF OREGON,

Plaintiff,

vs.

BARRY TRENELL WASHINGTON,

Defendant.

COMPLAINT FOR IMPOSITION OF PUNITIVE
SANCTIONS, CONTEMPT-
VIOLATION OF RELEASE AGREEMENT
RELATING TO 24CR49041

25CN02140

The above named defendant is accused by this Complaint of the following

Count 1: CONTEMPT OF COURT - VRA (Punitive Contempt; ORS 33.015; 33.065; and 135.290)

Count 1

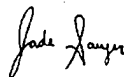
The defendant, on or about May 10, 2025 in Washington County, Oregon, did unlawfully and willfully disobey an order of the Washington County Circuit Court, by having contact with Ashle Penn.

For which acts or omissions the State seeks imposition of the following punitive sanctions for each separate count of contempt:

1. Confinement for a period not to exceed six (6) months.
2. Forfeiture of any proceeds or profits obtained through the contempt.
3. A fine not to exceed \$500.00 or one percent (1%) of the defendant's annual income whichever is greater.
4. Probation and/or community service.

The foregoing is true as I verily believe based upon the files and records of the Court.

Dated: May 13, 2025



Jade Sawyer
Deputy District Attorney
Oregon State Bar #250555

Not ECR Eligible

DA# 446588

Related to Case#

24CR49041

DOB: 04/06/1984

Appear – In Custody

25CN02140
CM
Complaint
19131374



IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124

Case No: 25CN02140

State of Oregon
vs
Barry Trenell Washington

Order Re:
Court – Appointed Counsel

Case Type: Procedural Matters - Contempt of Court Punitive

Applicant: Barry Trenell Washington

The court orders as follows:

The applicant's request for court-appointed counsel is:

- ☐ **Denied**
- ☒ **Approved** (*Attorney Name*): MPD
is appointed as counsel for the defendant, contingent upon further verification
- ☐ OPDC will review the application for non-routine expenses.
- ☒ Attorney contract or fee disputes shall be referred to the Presiding Judge.

The \$20 Application Fee is:

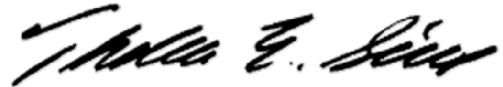
- ☐ **Ordered**, due immediately (or due on Σ)
- ☐ **Waived**

The Contribution Amount is:

- ☐ **Ordered**, in the amount of , due immediately (or due on Σ)
- ☐ **Waived**

If Applicant is a minor, the ordered amounts are payable by (name):

5/14/2025 11:01:55 AM



Circuit Court Judge, Theodore E. Sims

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY

STATE OF OREGON

ORDER

Case No:

25CN02140

DA:

Jake Sanger

Defense Attorney:

Jake Brugger

Interpreter:

Language:

FTR Courtroom:

426J

Proceeding:

Amendment

25CN02140

OR

Order

19137302



vs.

Barry Trenell Washington

Defendant

Truly named. ☐

Proceeded as named. ☐

☒

Arraigned

☐ Rights Given

☐ Waived

☐ Not Guilty Plea

☒ Denial

☒ In Custody

Attorney:

☒

Appointed

☐ May Request

☐ Retained

☐ To Be Retained

☐ Waived

OSB#:

Name:

MPD

☐ DUII Advisory Counsel

☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____, at Request of: _____

by: Telephone / Letter / Motion / Attorney

☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.

☐ Guilty / No Contest Plea with Sentencing on _____ at _____

☐ Deferred Sentencing

☐ Declined

☐ PSI Ordered: DOB _____

☐ Atty to be present

☐ Allowed

☐ Ineligible

Counts/Charges: _____

☐ Waived Extradition

☐ Requested Governors Warrant

Def. Contact Info.: _____

Next Personal Appearance(s):

☐ Preliminary Hearing

☐ Case Management Hearing

on _____ at _____

☐ Final Resolution Conference

☒ Contempt (108c)

on 5/20/25 at 1:30pm

☐ Case Assignment

☐ _____ on _____ at _____

☐ Trial

☐ _____ on _____ at _____

Preliminary Hearing:

☐ Prelim Waived ** By: _____

☐ Probable cause found on Ct(s): _____

☐ Probable cause not found on Ct(s): _____

☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☐ Failed To Appear for: _____ ☐ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time

☐ Revoke Release ☐ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ _____

☐ Judgment of Acquittal Ct(s): _____

☐ Finding of Not Guilty Ct(s): _____

☐ Judgment of Dismissal Ct(s): _____

☐ Finding of Guilty Ct(s): _____

☐ Other: _____

Date:

5.13.25

Judge:

[Signature]

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,	)	No. 25CN02140
	)	
Plaintiff,	)	Defendant's Discovery Demand
	)	and Notice of Assertion of Rights
vs.	)	
	)	
BARRY TRENELL WASHINGTON,	)	
	)	
Defendant.	)	

The defendant, BARRY TRENELL WASHINGTON, hereby demands discovery, as further specified in Section I, and provides notice of the assertion of several rights, as outlined in Section II.

I. Discovery Demand

Mr. Washington requests that the state disclose all material and information to which he is entitled under ORS 135.805–.873; Article I, Section 9, of the Oregon Constitution; and the Fourteenth Amendment to the U.S. Constitution. Mr. Washington specifically requests material and information as follows.

A. Exculpatory Information

Mr. Washington requests that the prosecutor make a specific and detailed effort to determine whether any information favorable to the defendant is known not only to the prosecutor but also to others acting on the state's behalf in this case, including the police. *See Kyles v. Whitley*, 514 U.S. 419, 437 (1995). If such information is already in written or recorded form, Mr. Washington requests that it be disclosed in that format. If it has not already been recorded or reduced to writing, Mr. Washington nevertheless requests its disclosure in whatever format the state deems appropriate to fully convey the information. Such exculpatory

- 1 information includes, but is not limited to, several types of information:
- 2 1. *Any material or information that tends to exculpate Mr. Washington.*
 - 3 2. *Any material or information that tends to negate or mitigate Mr. Washington's guilt or*
4 *punishment.*
 - 5 3. *Any material or information that tends to impeach a person the state intends to call as a*
6 *witness at the trial or whose credibility the state relied on in the investigation or*
7 *prosecution of the case.* This includes the person's criminal record, along with any material
8 or information concerning criminal or other misconduct not reflected in the criminal record,
9 such as information found in prior police reports, found in the person's probation file,
10 concerning a pending criminal charge or investigation, or any such information relating to a
11 business entity with which the person is connected. This also includes any information
12 relating to the person's mental or physical history that tends to reflect adversely on the
13 reliability of the witness, including any information that tends to affect a witness's motive
14 for testifying or ability to perceive, recall, or understand events, as well as any information
15 tending to show the person's animosity toward the defendant.
 - 16 4. *Any material or information that tends to contradict the testimony the state anticipates a*
17 *witness will provide or to contradict any statement the state intends to rely on.*
 - 18 5. *Any material or information that tends to minimize or negate the probative value of the*
19 *state's evidence.*
 - 20 6. *Any material or information describing or relating to the conduct of Mr. Washington that*
21 *in any way refutes or is inconsistent with Mr. Washington's participation in the alleged*
22 *criminal offenses.* This includes any results, reports, or opinions obtained from
23 examinations, tests, or experiments related to evidence that are favorable to Mr. Washington
24 or tend to corroborate the theory of defense.
 - 25 7. *Any material or information that tends to support the illegality of any search or seizure.*
 - 26 8. *Any threats, benefits, promises, agreements, or compensation offered to or received by any*
witness or other person upon whose credibility the state intends to rely.

- 1 9. *Any requests by any witness or other person upon whose credibility the state intends to rely*
2 *for benefits, promises, agreements, or compensation.*
- 3 10. *Any threats, benefits, promises, agreements, or compensation offered to or received by Mr.*
4 *Washington.*
- 5 11. *Any material or information concerning the identity or location of an eyewitness the state*
6 *does not intend to call.*
- 7 12. *Any material or information that would tend to mitigate any sentence imposed, support a*
8 *mitigating factor, or negate an aggravating factor.*

9 **B. Other Information**

- 10 1. *The names and addresses of all people the state intends to call as witnesses at any stage of*
11 *the trial.* A general reservation of the right to call any person named in discovery will not
12 suffice. *See* ORS 135.815(1)(A); *cf. State v. Chase*, 240 Or. App. 541 (2011) (holding a notice
13 of child hearsay that generally refers to all of the reports in discovery as insufficient to notify
14 the defendant with particularity).
- 15 2. *The relevant written or recorded statements, or memoranda of any oral statements, of all*
16 *people the state intends to call as witnesses at any stage of the trial.* This includes several
17 specific types of recorded statements:
- 18 a. Police officers' notes. *See State v. Johnson*, 210 Or. App. 733 (2007).
- 19 b. Any statements made to representatives of the Washington County District Attorney's
20 victim assistance office.
- 21 c. Any statements recorded on video, including body-worn camera, dash camera, or
22 surveillance camera in law-enforcement offices or vehicles.
- 23 d. Any communications by a person the state intends to call as a witness with the
24 prosecutor or any representative of the Washington County District Attorney's office
25 recorded by letter, email, or voicemail.
- 26 e. Any verbatim notes of oral statements made by a person the state intends to call as a
witness.

- 1 3. *The relevant written or recorded statements, or memoranda of any oral statements, of Mr.*
2 *Washington or, in the case of a joint trial, any codefendant.*
- 3 4. *Any information or material related to the circumstances of specified statements from Mr.*
4 *Washington or, in the case of a joint trial, any codefendant.*
- 5 5. *Any reports or statements of experts made in connection with this case.* This includes results
6 of physical or mental examinations and of scientific tests, experiments, or comparisons which
7 the state intends to offer in evidence at trial.
- 8 6. *Any books, papers, documents, photographs, videos, or tangible objects which the state*
9 *intends to offer in evidence at trial.*
- 10 7. *Any books, papers, documents, photographs, videos, or tangible objects which were*
11 *obtained from or belong to Mr. Washington.*
- 12 8. *Any record of prior criminal convictions of any person the state intends to call as a witness.*
13 The defendant requests that the state make a good-faith effort to determine the existence of any
14 such convictions.
- 15 9. *All criminal convictions of Mr. Washington.* This includes criminal convictions that would
16 affect the determination of Mr. Washington's criminal history for sentencing. This also includes
17 criminal convictions the state would plan to introduce at trial, whether in its case in chief or as
18 impeachment should Mr. Washington testify.
- 19 10. *Any evidence related to other acts of Mr. Washington the state intends to introduce at trial.*
- 20 11. *Any information or material related to the occurrence or circumstances of any search or*
21 *seizure related to this case.*
- 22 12. *Any material or information obtained by search or seizure related to this case.*
- 23 13. *All audio recordings, or the notes or report of a shorthand reporter, related to any grand*
24 *jury proceedings that resulted in any indictment in this case.*
- 25 14. *The identity of any confidential informant involved in this case, unless the identity is a*
26 *prosecution secret and a failure to disclose will not infringe Mr. Washington's constitutional*
 rights.

[illegible]

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CERTIFICATE OF SERVICE

I certify that on May 16, 2025, I or a representative of my office served this defendant's discovery demand and notice of assertion of rights on the plaintiff by electronically serving a true copy thereof as required by UTCR 21.100.

/s/JAKE BRUGGER
METROPOLITAN PUBLIC DEFENDER



STATE OF OREGON

ORDER

Case No: 25CN02140

Plaintiff

DA: ~~Jake Brugger~~ Jade Sawyer

Defense Attorney: Jake Brugger

Interpreter: _____ ☐ Language: _____

FTR Courtroom: 108C

Proceeding: Contempt of Court - VRO

vs.

Berry Trenell Washington
Defendant

Truly named. ☐

Proceeded as named.

☐ Arraigned ☐ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☒ In Custody

Attorney: ☒ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived

OSB#: _____ Name: _____ ☐ DUII Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____, at Request of: _____

by: Telephone / Letter / Motion / Attorney

☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.

☐ Guilty / No Contest Plea with Sentencing on _____ at _____

☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present

☐ Allowed ☐ Ineligible Counts/Charges: _____

☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s): ☐ Preliminary Hearing ☐ Case Management Hearing on 5/27/25 at _____

☐ Final Resolution Conference ☒ Contempt (108C) on 6/3/25 at 1:30 pm

☐ Case Assignment ☐ _____ on _____ at _____

☐ Trial ☐ _____ DOCKETED on _____ at _____

Preliminary Hearing: ☐ Prelim Waived ** By: _____

☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____

☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☐ Failed To Appear for: _____ ☐ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time

☐ Revoke Release ☐ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ _____

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____

☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____

☐ Other: _____

Date: 05/20/2025

Judge: Kelly D. Lemarr
Kelly D. Lemarr

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

25CN02140
ORDO
Order - Release
19137297



ORDER on ☒ Release Hearing
☐ Release Status Check
☐ Modification of Release
☐ Violation of Release

STATE OF OREGON)
Plaintiff,)
vs)
Barry Trenell Washington)
Defendant.)

Case No. 25CN02140
Deputy DA Jade Sawyer
Defense Atty Jake Brugger
Interpreter _____
Hearing Date 5/13/2025

This matter having come before the Court with:

☐ Defendant present ☒ In Custody
☐ Defendant not present

it is hereby ORDERED by the Court that:

Security Release: _____ Same / New Security Amount: \$ _____ (Post 10%)

☒ Conditional Release, with special conditions as listed below
_____ NO FORCED RELEASE

Special Conditions:

- ☒ 1. Responsible person, approved by Court Release Office: _____
- ☒ 2. Reside with responsible person or: _____
- ☒ 3. Obey all house rules
- _____ 4. Curfew from _____ PM to _____ AM
- _____ 5. House arrest
- _____ 6. Not to leave the residence unless with the responsible person
- ☒ 7. Not to leave residence unless with person(s) approved by Court Release Office
- ☒ 8. May leave residence for school, work, counseling, legal, medical, other _____
- ☒ 9. Not to possess or consume (a) alcohol, (b) illegal drugs, (c) dangerous or deadly weapons, (d) other _____
- ☒ 10. Not to have any contact with (a) victim, (b) family of victim, (c) witnesses ASHLEE PEU
- _____ 11. Pretrial Electronic Monitoring through Vigilnet: (a) GPS, (b) alcohol, (c) both
- _____ 12. Report to PO in person within 24 hours of release from custody
- _____ 13. Report address to the Court in writing upon release from custody
- _____ 14. Sign and abide by the "no contact with minors" addendum
- _____ 15. May not operate a motor vehicle without valid license and insurance
- _____ 16. Not possess ID, checks or credit cards that do not belong to defendant
- _____ 17. Additional conditions ordered by the Court: _____

Next court date, time & courtroom: 5/20/25 @ 1:30 pm ~ 108C

Dated 5/13/2025

Judge's Signature (Please print or stamp name below)

Theodore E. Sims
Circuit Court Judge

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY

STATE OF OREGON

ORDER

25CN02140
OR
Order
19169468



Case No: 25CN 02140

Plaintiff

DA: B. Vasconcellos

vs.

Defense Attorney: S. Brugger

Interpreter: _____ ☐ Language: _____

FTR Courtroom: 108C

Proceeding: Contempt of Court - VRO

Verified Correct copy of Original 5/27/2025

Berry Trenell Washington
Defendant

Truly named. ☐

Proceeded as named.

☐ Arraigned ☐ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☒ In Custody

Attorney: ☐ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived

OSB#: _____ Name: _____ ☐ DUII Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____, at Request of: _____

by: Telephone / Letter / Motion / Attorney

☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.

☐ Guilty / No Contest Plea with Sentencing on _____ at _____

☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present

☐ Allowed ☐ Ineligible Counts/Charges: _____

☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s): ☐ Preliminary Hearing ☐ Case Management Hearing on _____ at _____

☐ Final Resolution Conference ☒ Contempt of Court on 06/10/2025 at 1:30pm

☐ Case Assignment ☐ _____ on _____ at _____

☐ Trial ☐ DOCKETED on _____ at _____

Preliminary Hearing: ☐ Prelim Waived ** By: _____

☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____

☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☐ Failed To Appear for: _____ ☐ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time

☐ Revoke Release ☐ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ _____

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____

☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____

☐ Other: _____

Date: 05/27/2025

Judge: Kelly D. Lemarr

Kelly D. Lemarr

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

vs.

BARRY WASHINGTON,

Defendant.

No. 25CN02140

MOTION TO WITHDRAW

HEARING REQUESTED

COMES NOW the Defendant, Barry Washington, by and through his attorney, Jake Brugger, and moves this Court for an order withdrawing counsel from any further representation of Mr. Washinton and appointing new counsel for the reasons set forth in the attached declaration.

Pursuant to UTCR 4.050, Defendant requests oral argument, official court reporting services, and estimates the time necessary for this hearing will not exceed thirty minutes. This Motion is based upon the attached declaration, and is, in the opinion of counsel, well-founded in law and not made nor filed for the purpose of delay.

DATED this June 5, 2025.

/s/ Jake Brugger
Jake Brugger, OSB # 244423
Attorney for Defendant

POINTS AND AUTHORITIES:

ORPC 1.16

PAGE 1 – MOTION TO WITHDRAW

1
2
3
4 CERTIFICATE OF SERVICE

5 I certify that on June 5, 2025, I or a representative of my office served the within:
6 MOTION, DECLARATION, AND PROPOSED ORDER TO WITHDRAW on the attorney of
7 record for the State by electronically serving that attorney with a true copy thereof as required by
8 UTCR 21.100.
9

10
11 /s/ Jake Brugger
12 METROPOLITAN PUBLIC DEFENDER
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PAGE 2 – MOTION TO WITHDRAW

1
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3
4 IN THE CIRCUIT COURT OF THE STATE OF OREGON
5 FOR THE COUNTY OF WASHINGTON

6 STATE OF OREGON,

7 Plaintiff,

8 vs.

9 BARRY WASHINGTON,

10 Defendant.

)
) No. 25CN02140

)
) DECLARATION IN SUPPORT OF
) MOTION TO WITHDRAW
)
)
)

11 I, Jake Brugger, hereby declare:

- 12 1. I am the attorney of record for Defendant, Barry Washington.
13
14 2. Mr. Washington is in custody.
15
16 3. Defendant is charged in the above captioned matter with Contempt of Court.
17
18 4. Defendant is scheduled for a status hearing in the above contempt matter on June 10,
19 2025 at 1:30pm.
20
21 5. I am requesting to withdraw due to a breakdown in the attorney client relationship. This
22 motion is not made for the purpose of delay.
23
24
25
26

DATED this June 5, 2025.

/s/ Jake Brugger
Jake Brugger, OSB # 244423
Attorney for Defendant

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

vs.

BARRY WASHINGTON,

Defendant.

No. 25CN02140

ORDER RE: MOTION TO
WITHDRAW

THIS MATTER having come before the Court upon the motion of Jake Brugger to
withdraw as the attorney for the defendant;

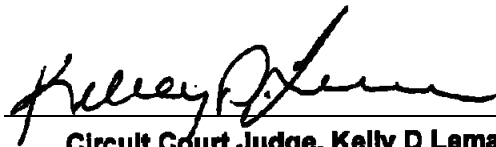
IT IS HEREBY ORDERED that the motion to withdraw is:

 Granted

✕

 Denied

6/10/2025 2:18:21 PM



Circuit Court Judge, Kelly D Lemarr

Submitted By:
Jake Brugger, OSB # 244423
Attorney for Defendant

PAGE 4 – MOTION TO WITHDRAW

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY

25CN02140
OR
Order
19212624



STATE OF OREGON

ORDER

Case No: 25CN02140

Plaintiff

DA: Cole Edwards

vs.

Defense Attorney: J. Brugger

Interpreter: _____ ☐ Language: _____

Barry Trenell Washington
Defendant

FTR Courtroom: 108C

Truly named. ☐

Proceeded as named. ☐

Proceeding: VRO Contempt

☐ Arraigned ☐ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☒ In Custody

Attorney: ☐ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived

OSB#: _____ Name: _____ ☐ DUI Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____, at Request of: _____

by: Telephone / Letter / Motion / Attorney

☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.

☐ Guilty / No Contest Plea with Sentencing on _____ at _____

☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present

☐ Allowed ☐ Ineligible Counts/Charges: _____

☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s): ☐ Preliminary Hearing ☐ Case Management Hearing on _____ at _____

☐ Final Resolution Conference ☒ Contempt - VRO on 6/17/25 at 1:30pm

☐ Case Assignment ☐ _____ on _____

☐ Trial ☐ _____ on _____

DOCKETED

Preliminary Hearing: ☐ Prelim Waived ** By: _____

☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____

☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☐ Failed To Appear for: _____ ☐ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time

☐ Revoke Release ☐ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ _____

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____

☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____

☐ Other: _____

Date: 6/10/25

Judge

Kelly D. Lemarr
Kelly D. Lemarr
Circuit Court Judge

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

June 11, 2025

Washington County Deputy District Attorney
150 North 1st Ave, Ste 300
Hillsboro OR 97124

Re: State of Oregon vs Barry Trenell Washington
Case #: 25CN02140 Procedural Matters - Contempt of Court Punitive

NOTICE OF SIGNED DOCUMENT

A case event that includes a signed document has been added to the Register of Actions for this case.

For further information, log into the Oregon eCourt Case Information (OECI) system or go to a public access kiosk at the courthouse.

Note: Documents may not be attached to events depending on local court business processes.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

June 11, 2025

Jake Robert Brugger
Metro Public Defender Inc
400 E Main St Ste 210
Hillsboro OR 97123

Re: State of Oregon vs Barry Trenell Washington
Case #: 25CN02140 Procedural Matters - Contempt of Court Punitive

NOTICE OF SIGNED DOCUMENT

A case event that includes a signed document has been added to the Register of Actions for this case.

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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY

25CN02140
OR
Order
19231357



STATE OF OREGON

ORDER

Case No: 25CN02140

Plaintiff

DA: J. Senf

vs.

Defense Attorney: ~~J. Brogg~~ A. Solberg

Interpreter: _____ ☐ Language: _____

FTR Courtroom: 108C

Proceeding: Contempt of Court - VRO

Barry Trenell Washington
Defendant

Truly named. ☐

Proceeded as named.

☐ Arraigned ☐ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☒ In Custody

Attorney: ☐ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived

OSB#: _____ Name: _____ ☐ DUI Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____, at Request of: _____

by: Telephone / Letter / Motion / Attorney

☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.

☐ Guilty / No Contest Plea with Sentencing on _____ at _____

☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present

☐ Allowed ☐ Ineligible Counts/Charges: _____

☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s): ☐ Preliminary Hearing ☐ Case Management Hearing on _____ at _____

☐ Final Resolution Conference ☒ Contempt of Court on 7.1.2025 at 8:30am
VRA contested.

☐ Case Assignment ☐ _____ on _____ at _____

☐ Trial ☐ _____ on DOCKETED at _____

Preliminary Hearing: ☐ Prelim Waived ** By: _____

☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____

☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☐ Failed To Appear for: _____ ☐ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time

☐ Revoke Release ☐ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ _____

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____

☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____

☐ Other: _____

Date: 06/17/2025

Judge: Kelly D. Lemarr

Kelly D. Lemarr

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,	)	
	)	No. 25CN02140
Plaintiff,	)	
	)	MOTION TO CONTINUE DATE OF
vs.	)	CONTESTED HEARING
	)	
BARRY WASHINGTON,	)	
	)	
Defendant.	)	

COMES NOW Barry Washington, by and through his attorney, Jake Brugger, and moves the Court to continue the date of the contested hearing in the above captioned cases, on the grounds in the attached declaration. The Defense moves to continue the date of the contested hearing in order to file a motion to suppress. If the Court grants the continuance, the Defense will request that the contested hearing be set in early to mid-August, or at a time the Court deems sufficient to provide all parties with adequate opportunity to respond to and consider the issue.

DATED this June 30, 2025

/s/ Jake Brugger
Jake Brugger, 244423
Attorney for Defendant

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CERTIFICATE OF SERVICE

I certify that on June 30, 2025, I or a representative of my office served the MOTION, DECLARATION OF SUPPORT OF MOTION on the attorney of record for plaintiff by electronically serving him a true copy thereof as required by UTCR 21.100.

/s/Jake Brugger
METROPOLITAN PUBLIC DEFENDERS

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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,	)	
	)	No. 25CN02140
Plaintiff,	)	
	)	DECLARATION IN SUPPORT OF
vs.	)	MOTION TO CONTINUE CONTESTED
	)	HEARING DATE
BARRY TRENNELL WASHINGTON,	)	
	)	
Defendant.	)	

STATE OF OREGON
County of Washington

I, Jake Brugger, declare:

1. I am the attorney of record for the defendant, Barry Washington.
2. Mr. Washington is charged with one count of Contempt of Court in 25CN02140, and was arrested on May 10, 2025. Mr. Washington is in custody.
3. The Defense requested to set a contested hearing in this matter, and the Court set the contested hearing for July 1, 2025.
4. The Defense is requesting a reset of the contested hearing date to file a motion to suppress and give the State an adequate opportunity to respond to the legal issues in the motion. The Defense makes this motion after Counsel completed additional research on the issue.
5. The issue that the Defense will seek to address in the suppression motion relates to the arrest warrant which formed the basis of Mr. Washington’s arrest at Ms. Penn’s residence, who is the protected party. The Defense will request that the State produce said warrant and prove its validity under *State v. Perrodin*, 315 Or App 252 (2021). The Warrant in question was

1 issued by Washington County Community Corrections on November 26, 2024, based on a
2 report authored by Mr. Washington's supervising officer, Molly McBride.

3 6. The Defense will request a reset which will provide all parties with adequate time to
4 investigate and brief the issue before the Court, and for the Court to consider the issue.

5 7. The State's position is unknown.
6

7 I hereby declare that the above statement is true to the best of my knowledge and belief, and
8 in good faith, and that I understand it is made for use as evidence in court and is subject to penalty
9 for perjury.

10 DATED this June 30, 2025.
11

12 /s/ Jake Brugger
13 Jake Brugger, 244423
14 Attorney for Defendant
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STATE OF OREGON

ORDER

Case No: 25CN02140

Plaintiff

DA: Smyer

vs.

Defense Attorney: Brugge

Interpreter: _____ ☐ Language: _____

FTR Courtroom: 108C

Proceeding: Having Contempt

Truly named ☐

Proceeded as named.

☐ Arraigned ☐ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☐ In Custody

Attorney: ☐ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived

OSB#: _____ Name: _____ ☐ DUII Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____, at Request of: _____

by: Telephone / Letter / Motion / Attorney

☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.

☐ Guilty / No Contest Plea with Sentencing on _____ at _____

☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present

☐ Allowed ☐ Ineligible Counts/Charges: _____

☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s): ☐ Preliminary Hearing ☐ Case Management Hearing on _____ at _____

☐ Final Resolution Conference ☐ _____ on _____ at _____

☒ Motion-Suppress ☐ Having on 7.29.25 at 8:30am

☐ Case Assignment ☐ Trial on 8.12.25 at 8:30am

☐ Trial ☒ Trial on 8.12.25 at 8:30am

DOCKETED

Preliminary Hearing: ☐ Prelim Waived ** By: _____

☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____

☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☐ Failed To Appear for: _____ ☐ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time

☐ Revoke Release ☐ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ _____

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____

☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____

☒ Other: Reset

I waive 60 days speedy trial on reset.

Date: 7.1.2025

25CN02140
OR
Order
19268273



Judge: Kelly D. Lemarr

Kelly D. Lemarr
Circuit Court Judge

Yellow: Defense Attorney Pink: District Attorney Goldenrod: Jail/Defendant

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

vs.

BARRY WASHINGTON,

Defendant.

No. 25CN02140

MOTION TO SUPPRESS SEARCH
AND ARREST

***HEARING REQUESTED
(SCHEDULED)***

COMES NOW Barry Washington, by and through his attorney, Jake Brugger, and moves to suppress a search of Ashle Penn's residence on the basis that the arrest warrant prompting that search failed to meet constitutional and statutory requirements. The Defense requests official court reporting services and estimates that oral argument on the motion will not exceed two hours. This Motion is based upon the attached Memorandum of Law, and is, in the opinion of counsel, well-founded and not made or filed for the purpose of delay. Trial is set for August 12, 2025, and this motion is timely under UTCR 4.010.

DATED this July 3, 2025.

/s/Jake Brugger
Jake Brugger, OSB #244423
Attorney for Defendant

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CERTIFICATE OF SERVICE

I certify that on July 3, 2025, I or a representative of my office served the MOTION TO SUPPRESS on the attorney of record for plaintiff by electronically serving them a true copy thereof as required by UTCR 21.100.

/s/Jake Brugger
METROPOLITAN PUBLIC DEFENDERS

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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,	)	No. 25CN02140
	)	
Plaintiff,	)	
	)	
vs.	)	MEMORANDUM OF LAW IN
	)	SUPPORT OF MOTION TO
BARRY WASHINGTON,	)	SUPPRESS SEARCH AND ARREST
	)	
Defendant.	)	<i>HEARING REQUESTED</i>
	)	<i>(SCHEDULED)</i>

INTRODUCTION

On May 10, 2025 Barry Washington was arrested pursuant to an arrest warrant issued by Washington County Community Corrections. Washington County Sherriff’s deputies entered Mr. Washington’s residence to arrest him under the authority of the warrant. Mr. Washington was arrested in the same home where Ashle Penn lived, and deputies discovered in the days after the arrest that Mr. Washington was subject to a release agreement barring his contact with Ms. Penn. This contempt prosecution followed. The Defense moves to suppress the search of the home and Mr. Washington’s arrest under Article I, § 9 of the Oregon Constitution on the basis that the State will be unable to produce a valid written warrant authorizing Mr. Washington’s arrest.

1 **BACKGROUND¹**

2 In the morning of May 10, 2025, Washington County Sheriff's deputies responded to a
3 domestic disturbance call at 17458 NW Springville Road apartment 9 in Portland, Oregon. The
4 caller was Avery Penn, who called to report that his daughter, Ashle Penn, wanted the police to
5 respond to an incident that occurred between her and her boyfriend, Barry Washington. At
6 approximately 6:42am, dispatch informed the responding officers that there was an active
7 warrant for Mr. Washington's arrest. When the deputies arrived at the residence, Ms. Penn
8 answered the door and informed them that she no longer required their assistance. The deputies
9 told Ms. Penn that Mr. Washington had a warrant for his arrest and that he needed to come out of
10 the apartment. Ms. Penn asked if the warrant was still active, and the deputies confirmed that it
11 was. The officers asked Ms. Penn for permission to enter the premises to arrest Mr. Washington,
12 and Ms. Penn declined. At first, Ms. Penn informed the deputies that Mr. Washington was on his
13 way out of the apartment. After approximately 10 minutes, the deputies entered the residence
14 with weapons drawn and arrested Mr. Washington.

15
16
17 Unbeknownst to the deputies at the time of Mr. Washington's arrest, Mr. Washington
18 was subject to an active release agreement which ordered that Mr. Washington was to have "no
19 contact with co-defendant Ashle Penn." At the time, Mr. Washington was charged with Theft in
20 the Second Degree for an incident that Ms. Penn was also involved in. On May 12, 2025, the
21 Washington County Deputy District Attorney prosecuting Mr. Washington for the theft, Jade
22
23

24 _____
25 ¹ The facts in this memorandum are taken from the police reports, WCCCA incident detail reports,
26 and body-worn camera. They are presented for the sole purpose of this written Memorandum. Mr.
Washington does not adopt as true any of these facts nor are they to be construed as admissions by
Mr. Parham. Additional or contradictory evidence may be presented at the suppression hearing.

1 Sawyer, asked deputy David Rambin to confirm if Mr. Washington and Ms. Penn were the
2 parties involved in the arrest on May 10th. Deputy Rambin confirmed that they were the parties
3 involved, and the State then filed this contempt matter.

4 The warrant that caused deputies to search Ms. Penn’s apartment for Mr. Washington
5 was issued by the Local Control Authority, Washington County Community Corrections
6 (WCCC), on November 26, 2024. WCCC issued the warrant on November 26, 2024 in response
7 to a warrant request filed by Mr. Washington’s probation officer, Molly McBride. Officer
8 McBride alleged in her report that Mr. Washington violated the conditions of his post-prison
9 supervision (PPS) by failing to report, using intoxicating substances, and completing a substance
10 use evaluation as directed.² The WCCC warrant was entered into the Law Enforcement Data
11 System (LEDS), but no written or signed warrant was prepared or issued.
12
13

14 **LAW AND ARGUMENT**

15 The search of Ms. Penn’s residence for Mr. Washington, as well as any fruits of that
16 search, should be suppressed because the warrant issued by the Local Control Authority failed to
17 meet Oregon constitutional and statutory requirements and therefore could not support the search
18 of the residence. Article I, § 9 of the Oregon Constitution protects against unreasonable searches
19 and seizures. A search conducted without a warrant is per-se unreasonable unless it “fall[s]
20 within one of the few specifically established and carefully delineated exceptions to the warrant
21 requirement.” *State v. Meharry*, 342 Or 173, 177 (2006). Police officers may search enter private
22 premises to make an arrest if there is a valid arrest warrant and probable cause to believe that the
23 subject of the arrest warrant is present on the premises. ORS 133.235(5); *State v. Jordan*, 288 Or
24

25 _____
26 ² That report is filed with this motion as exhibit 1

1 391, 402 (1980).

2 Supervisory authorities, including WCCC, may order the arrest of any person under their
3 supervision upon being informed and having reasonable grounds to believe that such person has
4 violated the conditions of parole, post-prison supervision, probation, conditional pardon or other
5 conditional release from custody. ORS 144.350. ORS 144.360 establishes that any such order
6 issued by a supervisory authority constitutes “full authority for the arrest and detention of the
7 violator, and all the laws applicable to warrants of arrest shall apply to such orders.”
8

9 In general, the state bears the burden of proof in a suppression hearing when a search or
10 seizure is warrantless, and the defendant bears the burden of proof when the search or seizure is
11 authorized by a warrant. *State v. Walker*, 350 Or 540, 553 (2011); *see also State v. Johnson*, 335
12 Or 511, 520 (2003). When a search or seizure is based on a warrant, the warrant is presumed
13 valid and the Defendant has the burden of demonstrating otherwise. *Walker*, 350 Or at 554.
14 However, when the existence or basic validity of a warrant is challenged, the State must either
15 produce the warrant and demonstrate its validity or demonstrate that the arrest was supported by
16 a warrant exception and probable cause. *State v. Perrodin*, 315 Or App 252, 262–3 (2021); *State*
17 *v. Pitz*, 317 Or App 8, 16 (2022). If the State opts for the first option and proves the validity of
18 the warrant, the burden then shifts to the defense. *Id.* (citing *State v. Jennings*, 220 Or App 1, 5
19 (2008), where the state made a *prima facie* case that a search was lawful by introducing the
20 warrant at the hearing on defendant's motion to suppress, shifting the burden to the defense).
21
22

23 Here, the arrest warrant issued by WCCC failed to meet the requirements of the “laws
24 applicable to warrants of arrest” because the warrant was not in writing and did not include a
25 sworn statement. Evidence obtained from searches arising from a defective warrant is subject to
26

1 suppression. *State v. Perrodin*, 315 Or App 252, 261 (2021) (citing *Noble*, 314 Or at 632); *See*
2 *also State v. Beckstead*, 164 Or App 538, 541 (1999).

3 **I. The arrest warrant issued by WCCC cannot justify the search and arrest because it**
4 **was not supported by a sworn oath or affirmation and because the State will be**
5 **unable to produce the warrant itself.**

6 Article I, § 9 provides that “no warrant shall issue but upon probable cause, supported by
7 oath, or affirmation, and particularly describing the place to be searched, and the person or thing
8 to be seized.” Except for limited exceptions, all warrants must be supported by oath or
9 affirmation. *Noble*, 314 Or at 632; *State v. Beckstead*, 164 Or App 538, 541 (1999). Article I, § 9
10 applies to arrest warrants as well as to search warrants. *State v. Brown*, 96 Or App 171, 175
11 (1989) (citing *State v. Flynn*, 137 Or. 8, (1931)).

12
13 In *Perrodin*, a detective investigated the defendant for dealing methamphetamine.
14 *Perrodin*, 315 Or App at 254. The detective searched for the defendant in a “law enforcement
15 database,” discovering that the defendant had a felony parole violation warrant for his arrest. *Id.*
16 The detective did not view the physical warrant with a judge’s signature or observe an affidavit
17 but only saw the computer entry that flagged the warrant. *Id.* The detective then arrested the
18 defendant on the parole violation warrant after the defendant left his apartment. *Id.* The detective
19 questioned the defendant, searched him, and found incriminating evidence. *Id.*

20
21 The Defendant moved to suppress, alleging that the arrest warrant was not supported by a
22 sworn statement of probable cause. *Id.* at 263. The State never produced an arrest warrant during
23 its prosecution of the defendant. *Id.* The Court of Appeals held that, because the State neither
24 produced the parole violation warrant nor demonstrated that the search was supported by
25 probable cause and a warrant exception, the trial court should have suppressed the evidence
26

1 found in the search. *Id.*

2 As in *Perrodin*, the Defense expects that the State will be unable to produce the warrant
3 which directed officers to arrest Mr. Washington. The State will similarly be unable to show that
4 the warrant was supported by a sworn statement, oath, or affirmation. The document attached as
5 exhibit 1 is a digital copy of the warrant request that Officer McBride³ submitted to WCCC. The
6 warrant request does not contain a sworn statement constituting an “oath or affirmation” under
7 Article I, § 9. *See* ORS 133.545(6), (7) (describing the requirements of an affidavit or sworn
8 statement for search warrants); *See also State v. Brown*, 96 Or. App. 171, 175 (1989) (noting that
9 unsworn statements before the court were insufficient to support an arrest warrant). If the State is
10 unable to make a prima facie case proving the validity of the arrest warrant which formed the
11 basis of the residence in this case, or if the Court ultimately finds that the arrest warrant was
12 invalid, the search and its fruits should be suppressed.
13
14

15 **II. The arrest warrant issued by WCCC failed to meet statutory requirements because**
16 **it was not in writing.**

17 A warrant of arrest must be in writing. ORS 133.140 (establishing the required contents
18 and form of arrest warrants). The issue of whether a probation violation warrant must be in
19 writing as required by ORS § 133.140(1) was addressed in *State v. Meier*, 145 Or App 179, 181
20 (1996). In *Meier*, an officer surveilled the defendant in his vehicle and suspected that he was
21 selling drugs, but he did not develop probable cause to arrest. *Id.* at 181-2. The officer
22 approached the defendant who admitted that he possessed a knife and a baseball bat. *Id.* The
23 officer then called the defendant’s parole officer and told him about the bat, the knife, and his
24

25
26 ³ At the time she submitted the warrant request, Officer McBride’s last name was Bineham.

1 suspicions of drug activity. *Id.* A condition of the defendant's probation was that he consent to a
2 search upon reasonable grounds to believe that evidence of a parole violation would be found. *Id.*
3 The investigating officer told the defendant that he had reasonable grounds to believe that he was
4 violating his probation and requested a search, which the defendant refused. *Id.* The parole
5 officer then verbally directed the investigating officer to arrest the defendant for a parole
6 violation. *Id.*
7

8 The defendant in *Meier* moved to suppress, arguing that ORS 144.360 (applying all laws
9 applicable to warrants to probation, parole, and PPS violation arrest orders) and ORS 133.140(1)
10 (requiring that all warrants shall be in writing) jointly required the probation officer's arrest order
11 to be in writing. *Meier*, 145 Or App at 183. The Court held that the arrest order was not required
12 to be in writing and that therefore the arrest was lawful. *Id.* at 185. The Court reasoned that,
13 when a police officer directly observes a person in the general public commit a crime, that
14 officer may arrest that person without a warrant, and by extension, a police officer acting on the
15 authority of a parole officer who possessed reasonable grounds to believe that the parolee
16 committed a parole violation in their presence also had the authority to make a warrantless arrest.
17 *Id.* The Court declined, however, to decide whether a written order or warrant based on a
18 probation violation is required in other circumstances. *Meier*, 145 Or App at 185 n. 6.
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21 Here, unlike in *Meier*, the alleged probation violation was unrelated to any conduct that
22 the arresting officers observed on May 10, 2025. The *Meier* court analogized the officer's
23 warrantless arrest based on his contemporaneous observations of the defendant to a warrantless
24 arrest based on direct observations of a crime being committed. The more appropriate analogy to
25 the warrant and arrest in this case is to an arrest warrant issued by a judge based on an oath or
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1 affirmation that the subject of the warrant has committed a crime. Such a warrant would be
2 required to be in writing under ORS 133.140(1). Because such a warrant would be required to be
3 in writing under that statute, the warrant authorizing Mr. Washington's arrest should have also
4 been in writing. If this Court does not find that a valid warrant was issued for Mr. Washington's
5 arrest was issued in writing, the Court should find that his arrest and the search effectuating that
6 arrest were unlawful.
7

8 **CONCLUSION**

9 The Defense expects that the State will be unable to produce a valid warrant
10 constitutionally and statutorily sufficient to support Mr. Washington's search and arrest on May
11 10, 2025. If the State is unable to produce said warrant, the Court should suppress all derivative
12 evidence of the search and arrest.
13

14 DATED this July 3, 2025.

15 /s/Jake Brugger
16 Jake Brugger, OSB #244423
17 Attorney for Defendant
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Corrections Information Systems
Offender Warrant Request Report

Offender: 14798711 WASHINGTON, BARRY TRENELL Location: WASH
DOB.....: 4/06/1984
Current Status: PostPrison/LC
Requester ID/Name: BINEHAMM
Address...: 17548 NW SPRINGVILLE RD #9
City.....: PORTLAND State: OR
Comm Risk: 000 HI High
Primary Caseload: 5249 MCBRIDE, MOLLY
Entry Date 11/25/2024

Docket #.:	County.:	Off#	ORS #	Para	Descrptn	Max Date
21CR25804/03	WASH	1	166220		WEAP USE	8/29/2025

WARRANT REQUEST

ALLEGATION #1: Violation of General Condition: Failure to Report as Directed.

SUBSTANTIATION #1: On 11/4/2024 Mr. Washington reported as directed and I provided him with a verbal and written directive via Action Plan to report in my office for his next appointment on 11/25/2024. I also sent him a copy of the action plan with a reminder of his reporting instructions on 11/7/2024.

On 11/25/2024 Mr. Washington failed to report. I attempted to call him and the call rang but did not route me to a voicemail.

ALLEGATION #2: Violation of Special Condition: Intoxicating substance use.

SUBSTANTIATION #2: On 11/4/2024 Mr. Washington provided a urinalysis (UA), as directed. On 11/6/2024 I received the results for the UA from the lab which stated the UA was positive for Amphetamines (>2,500ng/mL) and Methamphetamine (>2,500ng/mL).

ALLEGATION #3: Violation of Special Condition: Complete a substance evaluation as directed and abide by treatment recommendations.

SUBSTANTIATION #3: On 11/4/2024 in office I provided Mr. Washington with a verbal and written directive via Action Plan to complete a substance use evaluation by 11/15/2024. I sent him a reminder of this directive via email on 11/7/2024. As of 11/25/2024 I have received no information or confirmation that Mr. Washington has scheduled or completed a substance use evaluation as directed.

RECOMMENDATION: It is respectfully recommended a warrant be issued for Mr. Washington's arrest. Upon apprehension, further recommendations will be made.

1
2
3 **IN THE CIRCUIT COURT OF THE STATE OF OREGON**
4 **FOR THE COUNTY OF WASHINGTON**

5 STATE OF OREGON,

6 Plaintiff,

7 vs.

8 BARRY TRENELL WASHINGTON,
9 Defendant.

No. 25CN02140 (DA 446588)

RESPONSE TO DEFENDANT'S
MOTION TO SUPPRESS SEARCH AND
ARREST

10
11 COMES NOW the State of Oregon, by and through Jade Sawyer, Deputy District Attorney for
12 Washington County, moving this Court to deny Defendant's motion in its entirety.

13 DATED: July 22, 2025
14

15 

16
17 Jade Sawyer
18 Oregon State Bar #250555
Deputy District Attorney

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On May 10, 2025, at about 6:42 a.m., deputies from the Washington County Sheriff's Office responded to a domestic disturbance at 17458 NW Springville Road, APT 9, Portland, OR. Avery Penn made the call, reporting an incident involving his daughter Ashle Penn and Defendant Barry Washington. Dispatch notified the deputies of an active WCCC arrest order for Defendant's PPS violations. The arrest order was entered into the Law Enforcement Data System (LEDS) on November 26, 2024, with cautions for carrying a concealed weapon and possession of a firearm based on Defendant's prior assaults and unlawful use of a weapon.

Deputy King arrived and knocked on the apartment door. Ashle Penn answered and confirmed that Defendant was inside. Deputy King notified Ms. Penn about the arrest order and asked Defendant to come out. Ms. Penn declined to answer questions and stated she would retrieve Defendant. After several minutes without a response from Defendant, Deputy King knocked again. Ms. Penn said she was trying to speed him up. After a delay of about 10 minutes, the deputies entered the residence. Deputies

1 announced their presence as Sheriff's Office personnel and requested Defendant to come out. Deputies
2 found Defendant sitting in a dark closet while searching a bedroom and arrested him. Deputy King
3 verified the active arrest order with WCSO Records and took Defendant to the Washington County Jail.

4 On May 12, 2025, Deputy David Rambin reviewed Deputy King's report and the dispatch call,
5 which indicated Ms. Penn's presence during the arrest. Deputy Rambin also confirmed with Deputy
6 Mock, who was present at the scene and spoke with Ms. Penn during the arrest. Deputy Mock recorded
7 Ms. Penn on his body-worn camera. Based on Ms. Penn's presence at the time of the arrest, Deputy
8 Justin Scott added a contempt charge for violation of the release agreement to Defendant's booking file
9 at the Washington County Jail, where he was already in custody. No physical evidence was seized
10 during the entry or arrest.

11 **ARGUMENT**

12 This Court should deny Defendant's motion to suppress because the arrest and search of
13 Defendant on May 10, 2025, were lawfully conducted under a valid arrest warrant pursuant to ORS
14 144.350 and met all applicable statutory and constitutional requirements. First, the WCCC arrest warrant
15 was validly issued under ORS 144.350 because it was signed by a proper supervisory authority based on
16 reasonable grounds from an investigation. Second, the warrant was in writing, as required by ORS
17 133.140(1) and ORS 144.360, and was properly documented and entered into the LEDS, confirming its
18 legal sufficiency and distinguishing it from irrelevant case law cited by the defense.

19 **I. The arrest warrant justifies the search and arrest under ORS 144.350.**

20 The WCCC arrest warrant justifies the search and arrest of Defendant as it was validly issued
21 under ORS 144.350. The warrant was signed by the appropriate supervisory authority and fulfilled the
22 statute's requirements for ordering an arrest based on reasonable grounds after an investigation. Article
23 I, Section 9, of the Oregon Constitution requires that warrants be issued "upon probable cause,

1 supported by oath or affirmation, and particularly describing the place to be searched and the person or
2 thing to be seized.” Or Const Art I, § 9. The relevant issue here is whether the warrant was issued “upon
3 probable cause, supported by oath, or affirmation.” *Id.* When a defendant challenges the validity of a
4 warrant, the State must either present the warrant to prove its validity or show that the arrest was
5 justified by a warrant exception supported by probable cause. *State v. Perrodin*, 315 Or App 252, 262–
6 63 (2021).

7 Oregon Revised Statute authorizes a supervisory authority, such as WCCC, to order the arrest
8 and detention of a person under PPS upon “reasonable grounds” to believe they violated supervision
9 conditions, following an investigation to ascertain the violation. ORS 144.350(1). The statute provides
10 that such orders constitute “full authority for arrest and detention of the violator.” ORS 144.360.
11 Although Article I, Section 9 of the Oregon Constitution requires that warrants be supported by
12 “probable cause,” Or Const Art I, § 9, in the context of PPS violations, the statute establishes a specific
13 statutory framework based on “reasonable grounds.” ORS 144.350(1).

14 Oregon Supreme Court has acknowledged that following this statutory process leads to valid
15 administrative warrants for PPS violations. *See State v. Gulley*, 324 Or 57, 65-66 (1996). In *Gulley*, the
16 Oregon Supreme Court analyzed a probation condition that required a probationer to submit to a search
17 if a probation officer had “reasonable grounds” to believe it would disclose evidence of a probation
18 violation. *Id.* The court held that “reasonable grounds” is “a quantum of evidence, less than probable
19 cause,” which produces a probation officer reasonably believes that “the probationer has violated a
20 condition of probation and that a search will produce evidence of that violation.” *Id.* “If a probation
21 officer in possession of that quantum of information asks to make such a search, the ensuing search is
22 valid under the statute.” *Id.* at 67. Although the court in *Gulley* analyzed a search incident, Article I, § 9
23 of the Oregon Constitution applies to both arrest warrants and search warrants. *State v. Brown*, 96 Or

1 App 171, 175 (1989). The statutes grant supervisory authorities the power to issue arrest orders when
2 they have reasonable grounds from an investigation to believe a violation has occurred.

3 Here, this Court should be able to conclude that WCCC issued the valid arrest warrant under
4 ORS 144.350 and should uphold it. The statutes allow a supervisory authority to issue an arrest order,
5 and the authority's signature on the warrant confirms adherence to the statute's process, ensuring its
6 legal validity. WCCC issued an arrest warrant for Defendant as a Warrant Authorization and Suspension
7 Order signed by a Supervising Authority/Designee. This signature reflects the supervisory authority's
8 determination that reasonable grounds existed for the arrest from an investigation detailed in Probation
9 Officer Molly McBride's written report. The McBride's report outlined three PPS violations: (1) failure
10 to report on November 25, 2024; (2) a positive urinalysis for amphetamines and methamphetamine on
11 November 6, 2024; and (3) failure to complete a substance use evaluation by November 15, 2024. These
12 documented violations provided the reasonable grounds required by ORS 144.350(1)(a), and the
13 investigation satisfied ORS 144.350(1)(b).

14 Moreover, the signed warrant by the State confirms that a supervisory authority reviewed the
15 investigation and authorized the arrest, validating the process under ORS 144.350 and justifying the
16 arrest. On May 10, 2025, deputies relied on the warrant's entry in the LEDS to locate Defendant and
17 arrest him. This signed order is what ORS 144.360 recognizes as "full authority" for an arrest, making it
18 legally sufficient under Oregon law. In practice, the supervisory authority's signature on the Warrant
19 Authorization and Suspension Order demonstrates that the process outlined in ORS 144.350 was
20 followed. As such, Oregon Supreme Court in *Gulley* has upheld similar administrative warrants when
21 issued by a supervisory authority in compliance with this statutory process. Thus, the WCCC arrest
22 warrant is validly issued because it bears the signature of a proper supervisory authority, satisfying the
23

1 statutory requirements. Accordingly, the warrant provided full legal authority for Defendant's arrest, and
2 the motion to suppress should be denied.

3 **II. The arrest warrant issued by WCCC was in writing.**

4 The WCCC arrest warrant was properly in writing, satisfying the requirements of ORS
5 133.140(1) and ORS 144.360, which confirms the legality of Defendant's arrest and search. The statute
6 requires that a warrant of arrest "shall be in writing." ORS 133.140(1). The statute also provides that
7 warrants issued under ORS 144.350 for PPS violations constitute "full authority" for arrest and are
8 subject to "all the laws applicable to warrants of arrest." ORS 144.360. It extends the warrant's writing
9 requirement to PPS violation orders under ORS 144.350.

10 Here, this Court should be able to conclude that the arrest warrant issued by WCCC was in
11 writing and met all statutory requirements. On November 26, 2024, the WCCC issued a Warrant
12 Authorization and Suspension Order in writing as signed by a Supervising Authority/Designee,
13 instructing law enforcement to take custody of Defendant for PPS violations. The order was entered into
14 LEDS, confirmed by dispatch on May 10, 2025, and supported by Probation Officer Molly McBride's
15 report. A written warrant, signed by a supervisory authority and recorded in official documents such as
16 the LEDS, meets this requirement. Therefore, the arrest warrant issued by WCCC fully complies with
17 ORS 133.140(1) and ORS 144.360, meeting the requirement that arrest warrants shall be in writing.

18 The defense's reliance on *State v. Meier*, 145 Or App 179, 185 (1996), is misplaced, as *Meier*
19 addressed a verbal order for an observed violation and explicitly declined to rule on cases like this,
20 where violations were not observed by arresting officers. *Id.* at 185 n.6. Here, the State has produced the
21 written warrant, unlike in *Meier*, where no written order was provided.

22 The defense's assertion that no written warrant was prepared is factually incorrect, and their
23 comparison to judicial warrants under ORS 133.140(1) is not applicable because the WCCC's written

1 order fulfills the statutory requirements. Therefore, the arrest and search were lawful, and the motion to
2 suppress should be denied.

3 **CONCLUSION**

4 For the foregoing reasons, the State respectfully requests that this Court deny Defendant's
5 motion to suppress search and arrest.

RE: State v. BARRY TRENELL WASHINGTON 25CN02140 (DA # 446588)

DOCUMENT(S):

State's Response to Defendant's Motion to Suppress

CERTIFICATE OF SERVICE – TRUE COPY

I hereby certify that I served a true copy of the above-named document(s) on Jake R Brugger by the following method:

☐ ~~**OJD eFiling System:** to said attorney's email address as recorded on the date of service in the eFiling system.~~

☒ **Electronic Transmission:** to said attorney's email address: jbrugger@mpdlaw.com

☐ **Interoffice:** into said attorney's mail pickup at the District Attorney's office at Hillsboro Oregon.

☐ **Mail:** to said attorney's business address:

Metropolitan Public Defenders
400 E Main St, Ste 210
Hillsboro, OR 97123

☐ **Personal Service:** to said attorney by personally handing him/her a true copy thereof

☐ **Facsimile Transmission:** to said attorney's fax number:

Dated: July 22, 2025



Jade Sawyer
Deputy District Attorney
Attorney(s) for Plaintiff

7/22/2025 2:49 PM

25CN02140

WASHINGTON COUNTY SUPERVISORY AUTHORITY OF POST-PRISON SUPERVISION
WARRANT AUTHORIZATION AND SUSPENSION ORDER

NAME: WASHINGTON, BARRY TRENELL
SID#: 14798711 COUNTY: WASH
DOB: 04/06/1984

ORDER OF SUPERVISION
SUSPENSION AND DETENTION

< OREGON ONLY >

WHEREABOUTS UNKNOWN

OFFENSE OFFENSE OFFENSE OFFENSE

21CR25804/03

WEAP USE

TO: ANY SHERIFF, PEACE OFFICER, PAROLE OFFICER, OR CORRECTIONS
OFFICER.

THE WASHINGTON COUNTY SUPERVISORY AUTHORITY OF POST-PRISON
SUPERVISION HEREBY SUSPENDS THE SUPERVISION OF THE ABOVE NAMED
PERSON WHO WAS RELEASED TO SUPERVISION ON 04/20/2023.

YOU ARE HEREBY AUTHORIZED AND DIRECTED TO TAKE CUSTODY AND HAVE THIS
PERSON DETAINED UNTIL FURTHER ORDER OF THE SUPERVISORY AUTHORITY.

THIS IS A NO BAIL WARRANT.

EFFECTIVE DATE: 11/26/2024



Supervising Authority / Designee

ORS 144.350, 144.360

***NOTIFY PO MOLLY BINEHAM AT 503-846-3584

ONCE IN CUSTODY TO INITIATE HEARING***

WARRANT AUTHORIZATION AND SUSPENSION ORDER
WASHINGTON COUNTY SUPERVISORY AUTHORITY OF POST-PRISON SUPERVISION

Corrections Information Systems
Offender Warrant Request Report

Offender: 14798711 WASHINGTON, BARRY TRENELL Location: WASH
DOB.....: 4/06/1984
Current Status: PostPrison/LC
Requester ID/Name: BINEHAMM
Address...: 17548 NW SPRINGVILLE RD #9
City.....: PORTLAND State: OR
Comm Risk: 000 HI High
Primary Caseload: 5249 MCBRIDE, MOLLY
Entry Date 11/25/2024

Docket #.:	County.:	Off#	ORS #	Para	Descrptn	Max Date
21CR25804/03	WASH	1	166220		WEAP USE	8/29/2025

WARRANT REQUEST

ALLEGATION #1: Violation of General Condition: Failure to Report as Directed.

SUBSTANTIATION #1: On 11/4/2024 Mr. Washington reported as directed and I provided him with a verbal and written directive via Action Plan to report in my office for his next appointment on 11/25/2024. I also sent him a copy of the action plan with a reminder of his reporting instructions on 11/7/2024.

On 11/25/2024 Mr. Washington failed to report. I attempted to call him and the call rang but did not route me to a voicemail.

ALLEGATION #2: Violation of Special Condition: Intoxicating substance use.

SUBSTANTIATION #2: On 11/4/2024 Mr. Washington provided a urinalysis (UA), as directed. On 11/6/2024 I received the results for the UA from the lab which stated the UA was postive for Amphetamines (>2,500ng/mL) and Methamphetamine (>2,500ng/mL).

ALLEGATION #3: Violation of Special Condition: Complete a substance evaluation as directed and abide by treatment recommendations.

SUBSTANTIATION #3: On 11/4/2024 in office I provided Mr. Washington with a verbal and written directive via Action Plan to complete a substance use evaluation by 11/15/2024. I sent him a reminder of this directive via email on 11/7/2024. As of 11/25/2024 I have received no information or confirmation that Mr. Washington has scheduled or completed a substance use evaluation as directed.

RECOMMENDATION: It is respectfully recommended a warrant be issued for Mr. Washington's arrest. Upon apprehension, further recommendations will be made.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

July 29, 2025

File Copy

Re: State of Oregon vs Barry Trenell Washington
Case #: 25CNO2140 Procedural Matters - Contempt of Court Punitive

NOTICE OF SCHEDULED COURT APPEARANCE

Scheduled Proceeding: Hearing
Room: Courtroom 108C

Date	Time
08/05/2025	8:30 AM

Additional information:
RE: Resp Motion to Suppress

IMPORTANT NOTICE: PLEASE READ

Failure to appear at the time and place noted above may result in an order or judgment being entered against you in the case.

Interpreter: If you need an interpreter, you must tell the court at least **4 business days before** your appearance date. Go to www.courts.oregon.gov/ScheduleAnInterpreter to get an interpreter.

Intérprete: Si Ud. necesita un intérprete, debe notificar al tribunal por lo menos 4 días laborales antes de la fecha de su comparecencia. Para conseguir un intérprete, siga el siguiente enlace: www.courts.oregon.gov/ScheduleAnInterpreter

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

July 29, 2025

Jake Robert Brugger
Metro Public Defender Inc
400 E Main St Ste 210
Hillsboro OR 97123

Re: State of Oregon vs Barry Trenell Washington
Case #: 25CN02140 Procedural Matters - Contempt of Court Punitive

NOTICE OF SCHEDULED COURT APPEARANCE

Scheduled Proceeding: Hearing
Room: Courtroom 108C

Date	Time
08/05/2025	8:30 AM

Additional information:
RE: Resp Motion to Suppress

IMPORTANT NOTICE: PLEASE READ

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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

July 29, 2025

Washington County Deputy District Attorney
150 North 1st Ave Ste 300
Hillsboro OR 97124

Re: State of Oregon vs Barry Trenell Washington
Case #: 25CN02140 Procedural Matters - Contempt of Court Punitive

NOTICE OF SCHEDULED COURT APPEARANCE

Scheduled Proceeding: Hearing
Room: Courtroom 108C

Date	Time
08/05/2025	8:30 AM

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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY

ORDER

STATE OF OREGON

Case No: 25CN02140

Plaintiff

DA: Swyer

vs.

Defense Attorney: Brugger, Jake

Interpreter: _____ ☐ Language: _____

FTR Courtroom: 108-C

Proceeding: Contempt of Court - VRO

Truly named. ☐

Proceeded as named.

☐ Arraigned ☐ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☐ In Custody

Attorney: ☐ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived

OSB#: _____ Name: _____ ☐ DUI Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____, at Request of: _____

by: Telephone / Letter / Motion / Attorney

☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.

☐ Guilty / No Contest Plea with Sentencing on _____ at _____

☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present

☐ Allowed ☐ Ineligible Counts/Charges: _____

☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s): ☐ Preliminary Hearing ☐ Case Management Hearing on _____ at _____

☐ Final Resolution Conference ☒ Contested VRO on 8-12-25 at 9:00 AM

☐ Case Assignment ☒ Suppressor motion on 8/5/2025 at 9:00

☐ Trial ☐ _____ on _____ at _____

DOCKETED

Preliminary Hearing: ☐ Prelim Waived ** By: _____

☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____

☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☐ Failed To Appear for: _____ ☐ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time

☐ Revoke Release ☐ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ _____

☐ Judgment of Acquittal Ct(s): _____

☐ Finding of Not Guilty Ct(s): _____

☐ Judgment of Dismissal Ct(s): _____

☐ Finding of Guilty Ct(s): _____

☐ Other: _____

25CN02140
OR
Order
19351638



Date: 7-29-25

Judge: _____

Kelly D. Lemarr

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,	)	No. 25CN02140
	)	
Plaintiff,	)	MOTION TO RECONSIDER
	)	WITHDRAWAL OF COUNSEL
vs.	)	
	)	
BARRY WASHINGTON,	)	
	)	HEARING REQUESTED
Defendant.	)	

COMES NOW the Defendant, Barry Washington, by and through his attorney, Jake Brugger, and moves this Court to reconsider its order denying a previous Defense motion to withdraw counsel from any further representation of Mr. Washinton and appointing new counsel for the reasons set forth in the attached declaration.

Pursuant to UTCR 4.050, Defendant requests oral argument, official court reporting services, and estimates the time necessary for this hearing will not exceed thirty minutes. This Motion is based upon the attached declaration, and is, in the opinion of counsel, required by the Oregon Rules of Professional Conduct and not made nor filed for the purpose of delay.

DATED this July 31, 2025.

/s/ Jake Brugger
Jake Brugger, OSB # 244423
Attorney for Defendant

POINTS AND AUTHORITIES:

ORPC 1.16(a)

PAGE 1 – MOTION TO WITHDRAW

1
2
3
4 CERTIFICATE OF SERVICE

5 I certify that on July 31, 2025, I or a representative of my office served the within:
6 MOTION, DECLARATION, AND PROPOSED ORDER TO WITHDRAW on the attorney of
7 record for the State by electronically serving that attorney with a true copy thereof as required by
8 UTCR 21.100.
9

10
11 /s/ Jake Brugger
12 METROPOLITAN PUBLIC DEFENDER
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PAGE 2 – MOTION TO WITHDRAW

1 Withdraw and grant this request for Counsel to withdraw from representing Mr.
2 Washington.

3
4 DATED this July 31, 2025.

5 /s/ Jake Brugger
6 Jake Brugger, OSB # 244423
7 Attorney for Defendant
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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

vs.

BARRY WASHINGTON,

Defendant.

No. 25CN02140

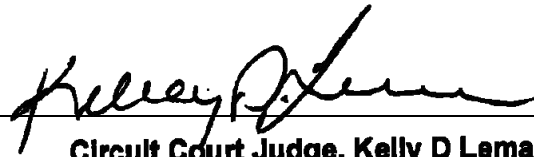
ORDER RE: MOTION TO
WITHDRAW

THIS MATTER having come before the Court upon the motion of Jake Brugger to
withdraw as the attorney for the defendant;

IT IS HEREBY ORDERED that the motion to withdraw is:

 Granted X Denied

8/5/2025 1:07:14 PM


Circuit Court Judge, Kelly D Lemarr

Submitted By:
Jake Brugger, OSB # 244423
Attorney for Defendant

PAGE 5 – MOTION TO WITHDRAW

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

August 05, 2025

Washington County Deputy District Attorney
150 North 1st Ave, Ste 300
Hillsboro OR 97124

Re: State of Oregon vs Barry Trenell Washington
Case #: 25CN02140 Procedural Matters - Contempt of Court Punitive

NOTICE OF SIGNED DOCUMENT

A case event that includes a signed document has been added to the Register of Actions for this case.

For further information, log into the Oregon eCourt Case Information (OECI) system or go to a public access kiosk at the courthouse.

Note: Documents may not be attached to events depending on local court business processes.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

August 05, 2025

Jake Robert Brugger
Metro Public Defender Inc
400 E Main St Ste 210
Hillsboro OR 97123

Re: State of Oregon vs Barry Trenell Washington
Case #: 25CN02140 Procedural Matters - Contempt of Court Punitive

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Note: Documents may not be attached to events depending on local court business processes.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

State of Oregon)
Plaintiff/Petitioner,)
)
vs.)
Barry Trenell Washington)
Defendant/Respondent.)
)
CASE NO. 25CN02140

RELEASE OF EXHIBITS

Proceeding: Motion to Suppress
Date: 8.5.2025

I HEREBY ACKNOWLEDGE RECEIPT OF THE EXHIBIT(S) DESCRIBED
BELOW IN THE ENTITLED CASE. PURSUANT TO UTCR 6.120 (1) (2), I WILL
RETAIN CUSTODY AND CONTROL UNTIL THE FINAL DISPOSITION OF THE
CASE AND/OR APPEAL DECISION.

DESCRIPTION: ~~22444444~~ State's Exhibit #1 - Washington Warrant
Authorization & Suspension Order

ATTORNEY: _____
(PRINTED NAME) (SIGNATURE)

PARTY: Jade Sawyer _____
Plaintiff/Petitioner (PRINTEDNAME) (SIGNATURE)

PARTY: _____
Defendant/Respondent (PRINTED NAME) (SIGNATURE)

FILED
OREGON JUDICIAL DEPT
POLICE DEPT
WASHINGTON COUNTY

AUG 05 2025

DATE: 8.5.2025

Exhibit Release
02/00

25CN02140
RPEB
Receipt - Exhibit
19374326



IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY

STATE OF OREGON

ORDER

vs.

Plaintiff

Case No: 25CN02140

DA: SWyer

Defense Attorney: Brogger, Jake

Interpreter: _____ Language _____

Defendant

Truly named ☐

Proceeded as named.

Proceeding: Contempt of Court FTR Ctrm: 108C

☐ Arraigned ☐ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☒ In Custody
☒ Attorney Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived

OSB#: _____ Name: _____ ☐ DUII Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____ Request of: _____

by: Telephone / Letter / Motion / Attorney

☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.

☐ Guilty / No Contest Plea with Sentencing on _____ at _____

☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present

☐ Allowed ☐ Ineligible Counts/Charges: _____

☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s): ☐ Preliminary Hearing ☐ Hearing Trial Readiness on _____ at _____

☐ Hearing Status Check ☐ Trial on _____ at _____

☐ Hearing Initial Appearance ☒ Contested VRO on 8-12-25 at 9:00AM

☐ Hearing Probation Violation ☐ _____ at _____

DOCKETED

Preliminary Hearing: ☐ Prelim Waived ** By: _____

☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____

☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

Defendant Failed to Appear: ☐ Bench Warrant Issued ☐ Arrest Warrant Ordered

☐ Revoke Release ☐ Security Amount: \$ _____ Previously posted security shall be forfeited per ORS 135.280(3).

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____

☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____

☐ Other: _____

25CN02140
OR
Order
19374306



Date: 8.5.2025

Judge: _____

Kelly D. Lemarr

IN THE CIRCUIT COURT OF THE STATE OF
OREGON FOR THE COUNTY OF WASHINGTON

25CN02140
AF
Affidavit
19379347



Pretrial Release General Affidavit

Case#: 25CN02140
and/or
Booking#: _____

Verified Correct Copy of Original, 8/7/2025

STATE OF OREGON,

Plaintiff,

v.

BARRY T. Washington

Defendant

JEFFREY B. Graham

, being first duly sworn, depose and say:

that I am the _____ Victim, ☒ Responsible 3rd Party, _____ Defendant, in the above entitled court and cause. I am requesting a Modification of Release Agreement for the following reasons:

He will be residing @ my residence located @
854 NE 14th St Battle Ground Washington. I am his
mother's fiancé his mother Juanda Washington is
in Mobile Alabama @ this time due to her mother's
illness. I am a VETERAN in the U.S. Army and will
do what is NECESSARY and he will abide by conditions
of his release and if he cannot abide by the
conditions of his release I will notify whomever
that he is not.

Respectfully

Jeffrey B. Graham

Are children involved in this matter? Y/N

Is a juvenile court case pending? Y/N

Has a DHS caseworker contacted you? Y/N

Jeffrey B. Graham

Signature of Victim, Defendant or Responsible 3rd Party

JEFFREY B. Graham

Printed Name

SUBSCRIBED AND SWORN TO before me this 7th day of August, 2025

Your phone number: 801-759-3319

Your email address: jeffrey-graham@ymail.com

Clerk of the Court

Alexander Japport

Approved/Denied:

1
2
3
4 **IN THE CIRCUIT COURT OF THE STATE OF OREGON**
5 **FOR THE COUNTY OF WASHINGTON**

6 STATE OF OREGON,

7 Plaintiff,

8 vs.

9 BARRY TRENELL WASHINGTON,
10 Defendant.

No. 25CN02140 (DA 446588)

MOTION FOR RESET

11 Comes now Jade Sawyer, Deputy District Attorney for Washington County, and moves the
12 Court for an Order resetting the trial date in the above matter.

13 This motion is made based upon the declaration attached hereto and by this reference made a
14 part thereof.

15 DATED: August 7, 2025.

16 

17 _____
18 Jade Sawyer
19 Deputy District Attorney
20 Oregon State Bar #250555
21
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2
3 **IN THE CIRCUIT COURT OF THE STATE OF OREGON**
4 **FOR THE COUNTY OF WASHINGTON**

5 STATE OF OREGON,

6 Plaintiff,

7 vs.

8 BARRY TRENELL WASHINGTON,

9 Defendant.

No. 25CN02140 (DA 446588)

DECLARATION IN SUPPORT OF
MOTION FOR RESET

10 STATE OF OREGON)
11) ss.
12 County of Washington)

13 I, Jade Sawyer, depose and state:

14 That I am a Deputy District Attorney for Washington County, Oregon.

15 That a Motion is being filed in this matter to reset the trial date on behalf of the Plaintiff for
16 the following reasons:

- 17 1. Parties are set for a contested hearing on August 12, 2025, at 8:30 am.
- 18 2. When this date was set, the State was unaware of any bad dates for its witnesses.
- 19 3. The State was notified that Deputy Lucas Aguilar is now unavailable on August 12, 2025.
- 20 4. Deputy Aguilar is a material and essential witness.
- 21 5. The State is requesting a reset. This is the State's first reset request regarding the contested
22 hearing.
- 23 6. Defense does not object.

1 I hereby declare that the above statement is true to the best of my knowledge and belief, and that I
2 understand it is made for use as evidence in court and is subject to penalty for perjury.
3

4 

5 Jade Sawyer
6 Deputy District Attorney
Oregon State Bar #250555
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22
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RE: State v. BARRY TRENELL WASHINGTON 25CN02140 (DA # 446588)

DOCUMENT(S):

State's Motion to Reset

CERTIFICATE OF SERVICE – TRUE COPY

I hereby certify that I served a true copy of the above-named document(s) on Jake R Brugger by the following method:

☐ ~~**OJD eFiling System:** to said attorney's email address as recorded on the date of service in the eFiling system.~~

☒ **Electronic Transmission:** to said attorney's email address: jbrugger@mpdlaw.com

☐ **Interoffice:** into said attorney's mail pickup at the District Attorney's office at Hillsboro Oregon.

☐ **Mail:** to said attorney's business address:

Metropolitan Public Defenders
400 E Main St, Ste 210
Hillsboro, OR 97123

☐ **Personal Service:** to said attorney by personally handing him/her a true copy thereof

☐ **Facsimile Transmission:** to said attorney's fax number:

Dated: August 7, 2025



Jade Sawyer
Deputy District Attorney
Attorney(s) for Plaintiff

CIRCUIT COURT, STATE OF OREGON, WASHINGTON COUNTY

STATE OF OREGON v. WASHINGTON, BARRY TRENELL Defendant

DEFENDANT ABOVE NAMED, ON OATH SAY AND AGREE:

1. To personally appear at all of my court dates in this case unless otherwise allowed by the Court.

I agree to appear on: 08/12/2025 09:00 AM

Total Charges for Case #: 1

033.045 CONTEMPT OF COURT x 1

WASHINGTON COUNTY CIRCUIT (HILLSBORO) 145 N.E. 2ND AVE., HILLSBORO, OR. 97124 503-846-6362

2. Check daily calendar for courtroom assignment, and to appear thereafter as ordered by the Court until discharged.

3. To submit to all orders and processes of the Court.

4. Not to leave Oregon without permission of the Court (for permission, contact the Court Release Office).

4(a). If initialed, I understand that I have court permission (subject to my waiver of extradition rights below) to reside in Washington State at the address on this release form. _____ (initials of Release Officer)

5. To keep the Court, my Attorney, and my Responsible Person advised of my correct address at all times and to maintain adequate contact with my attorney such that the attorney can contact me on short notice at all times.

6. To obey all laws and notify the Court immediately if arrested or cited for any offense (other than traffic violations).

7. You are not to have any direct or indirect contact with the victim and/or co-defendant(s) unless specifically authorized by the Court. "Victim" means the person(s) who have suffered financial, social, psychological, or physical harm as a result of the alleged crime(s).

8. To also obey the following condition(s): Initial: _____ Initial: _____

You are not to possess or consume any alcohol.

You are not to possess or consume any illegal drugs.

You are not to possess any dangerous weapons, firearms, knives, etc.

You are not to have any contact with the victim's family, co-defendant's or witness's.

You are not to leave the residence except for work.

May leave residence for counseling, legal, medical.

You are to reside with and obey all house rules of the responsible person.

You must not leave the residence unless with the Responsible Person and/or person approve by the Court Release Office.

You are not to go within 150 yards of the victim's residence, work, vehicle or person. Victim: ASHLEE PEN

I UNDERSTAND FULLY THAT:

1. A willful failure to appear in Court is a separate and serious crime punishable by fine, jail or prison sentence.
2. A willful failure to appear in Court results in a waiver of my speedy trial rights on all charging instruments, including subsequently filed indictments, arising from the criminal episode which is the subject of this release agreement.
3. A willful failure to appear in Court may negate my speedy trial rights if I leave the State even if the State fails to extradite me.
4. That the Court may modify or revoke this agreement and my release and may add conditions or require security to be posted.
5. That any breach of this agreement may be punished as contempt of court and result in re-arrest.
6. I must provide an address, phone number, email or any combination of, so the court can send a reminder notice. The contact avenues can include a family, friend, or shelter's address or phone to number.

I UNDERSTAND THAT IF I AM FOUND OUTSIDE THIS STATE IN VIOLATION OF THIS AGREEMENT, I HEREBY WAIVE MY RIGHT TO CONTEST EXTRADITION BACK TO THE STATE OF OREGON.**I HAVE READ, FULLY UNDERSTAND AND VOLUNTARILY SIGNED THIS AGREEMENT.**

Date: 8/7/2025, Signature of Defendant: X _____

Height: 508, Weight: 160, Hair: BLK, Eyes: BRO, Birth Date: 04/06/1984

Address: 17856 NW SPRINGVILLE RD # 9 PORTLAND, OR 97229

Mailing Address if different:

Phone: (971) 266-1857

Your Email:

Family/Friend/Shelter Phone:

Family/Friend/Shelter Address:

Family/Friend Email:

25CN02140

AGRC

Agreement - Conditional Release

19386143



FILED
OREGON JUDICIAL DEPT
WASHINGTON COUNTY
2025 AUG -07 A 8:43

Subscribed and sworn to before me and receipted this 7th of August, 2025

Printed Name of Officer: _____

Signature of Officer: _____

Title: _____

Agency: _____

Language: _____

Interpreter: _____

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY

ORDER

STATE OF OREGON

Plaintiff

Case No: 25CN02140

vs.

DA: Slwyer

Defense Attorney: Brugger

Berny Trenell Washington

Defendant

Interpreter: _____ Language: _____

Truly named. ☐

Proceeded as named. ☐

Proceeding: Contempt of Court VRO FTR Ctrm: 108C

☐ Arraigned ☐ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☐ In Custody
Attorney: ☐ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived

OSB#: _____ Name: _____ ☐ DUII Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____ Request of: _____

by: Telephone / Letter / Motion / Attorney

☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.

☐ Guilty / No Contest Plea with Sentencing on _____ at _____

☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present

☐ Allowed ☐ Ineligible Counts/Charges: _____

☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s): ☐ Preliminary Hearing ☐ Hearing Trial Readiness on _____ at _____

☐ Hearing Status Check ☐ Trial on _____ at _____

☐ Hearing Initial Appearance ☒ Contested VRO on 10-7-25 at 9:00am

☐ Hearing Probation Violation ☐ _____ on _____ at _____

DOCKETED

Preliminary Hearing: ☐ Prelim Waived ** By: _____

☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____

☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

Defendant Failed to Appear: ☐ Bench Warrant Issued ☐ Arrest Warrant Ordered

☐ Revoke Release ☐ Security Amount. \$ _____ Previously posted security shall be forfeited per ORS 135 280(3).

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____ 25CN02140

☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____ OR

☐ Other: _____ Order 19394304



Date: 8-12-2025

Judge: Kelly D. Lemarr
Kelly D. Lemarr

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

vs.

BARRY TRENELL WASHINGTON,
 Defendant.

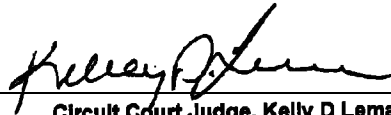
No. 25CN02140 (DA 446588)

**ORDER ON STATE'S MOTION FOR
 RESET**

Based upon the motion made and filed herein, and good cause appearing therefore, it is
 ORDERED that State's Motion for Reset be

 X Granted Denied

8/20/2025 12:11:17 PM



Circuit Court Judge, Kelly D Lemarr

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

August 20, 2025

Jake Robert Brugger
Metro Public Defender Inc
400 E Main St Ste 210
Hillsboro OR 97123

Re: State of Oregon vs Barry Trenell Washington
Case #: 25CN02140 Procedural Matters - Contempt of Court Punitive

NOTICE OF SIGNED DOCUMENT

A case event that includes a signed document has been added to the Register of Actions for this case.

For further information, log into the Oregon eCourt Case Information (OECI) system or go to a public access kiosk at the courthouse.

Note: Documents may not be attached to events depending on local court business processes.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

August 20, 2025

Washington County Deputy District Attorney
150 North 1st Ave, Ste 300
Hillsboro OR 97124

Re: State of Oregon vs Barry Trenell Washington
Case #: 25CN02140 Procedural Matters - Contempt of Court Punitive

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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

vs.

BARRY WASHINGTON,

Defendant

Case No.: 25CN02140

MOTION FOR PREPARATION OF
TRANSCRIPT AT STATE EXPENSE

Defendant, Barry Washington, respectfully moves this Court for an order directing preparation of the transcripts of all proceedings held in this case at state expense, pursuant to ORS 138.500 and applicable court rules.

I. Basis for Motion

1. Defendant is indigent and represented by court-appointed counsel.
2. The transcript of the [suppression hearing / motion hearing / other proceeding] is necessary to:
 - Preserve issues for appellate review, including constitutional and statutory challenges to the arrest order issued under ORS 144.350;
 - Document objections made by Defendant regarding representation, conflicts of interest, and requests for withdrawal of counsel;
 - Ensure an adequate record of the Court's rulings and the basis for those rulings.

//

1 II. Legal Authority

2 • ORS 138.500(2) provides that an indigent defendant is entitled to have transcripts
3 prepared at state expense when necessary for adequate representation or appeal.
4

5 • The Oregon Constitution and the Sixth and Fourteenth Amendments to the United
6 States Constitution guarantee the right to effective assistance of counsel and meaningful
7 appellate review, which require access to the record of proceedings.
8

9 III. Relief Requested

10 Defendant respectfully requests that this Court order preparation of the transcripts
11 of the proceedings held at state expense, and that the transcript be provided to Defendant and
12 counsel promptly upon completion. Defendant also requests that a copy of the digital audio
13 recordings for this case be provided in the interim if delays are expected in the preparation of the
14 transcript.
15
16

17
18
19 Dated this 24th day of September 2025.
20

21 Respectfully submitted,

22 /s/ Barry Washington
23

24 BARRY WASHINGTON
25 PO BOX 1572
26 PORTLAND OR 97207
27 barrywashington.bw@gmail.com
28

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

vs.

BARRY WASHINGTON,

Defendant

Case No.: 25CN02140

MOTION TO DISQUALIFY COUNSEL
AND FIRM FOR CONFLICT OF INTEREST

Defendant, appearing before this Court, respectfully moves for the disqualification of appointed counsel, Mr. Jake Brugger and the Metropolitan Public Defenders office in its entirety, on the grounds of an actual and ongoing conflict of interest that undermines the integrity of these proceedings and deprives Defendant of the right to conflict-free representation.

I. Basis for Motion

1. The Metropolitan Public Defenders, with Mr. Jake Brugger serving as assigned counsel, are currently representing the Defendant.
2. Defendant has an active Post-Conviction Relief (PCR) matter alleging ineffective assistance of counsel by another attorney from the same office.
3. The same supervising attorney who currently oversees Mr. Brugger also previously supervised that attorney.
4. Consequently, the firm faces a clear conflict of interest: it must balance defending its previous work on the PCR case with adequately and effectively representing the Defendant in the current matter.

- 1 5. Defendant attempted to raise this conflict in open court. The Court limited Defendant's
2 opportunity to explain the conflict and denied the request for withdrawal and
3 disqualification.
4
- 5 6. Furthermore, Mr. Brugger has committed multiple professional conduct rule violations
6 during his representation in this matter, and an ethics complaint regarding his conduct is
7 on file with the Oregon State Bar.

8 **II. Legal Authority**

- 9 7.. The Sixth Amendment to the United States Constitution and Article I, section 11 of the
10 Oregon Constitution guarantees right to effective assistance of counsel, which includes
11 the right to representation free from conflicts of interest.
12
- 13 8. ORPC 1.7 prohibits representation where a lawyer's responsibilities to another client, a
14 former client, or the lawyer's own interests materially limit the representation.
15
- 16 9. ORPC 1.10 imputes such conflicts to all lawyers in the same firm.
17
- 18 10. This type of conflict is structural in nature and, as such, is not subject to waiver absent
19 the Defendant's fully informed and voluntary consent. Accordingly, the Defendant
20 formally objects to any implied or presumed waiver of this conflict, as such a waiver
21 would fundamentally compromise the fairness and integrity of these proceedings.

22 **III. Prejudice and Harm**

- 23 11. Defendant's representation, which lacked the diligence and competence expected of a
24 reasonably prudent attorney, has significantly impaired his ability to contest the legality
25 of the officers' entry into his residence. This issue is of constitutional magnitude and is
26 the root of the alleged release agreement violation constituting contempt.
27
28

1 12. The firm has an institutional interest in minimizing or avoiding findings of ineffective
2 assistance, which directly conflicts with Defendant's interest in fully litigating those
3 issues.

4
5 13. The Court's refusal to permit Defendant to articulate the conflict deprived him of a
6 meaningful opportunity to be heard.

7 **IV. Relief Requested**

8 Defendant respectfully requests that this Court:

- 9
- 10 • Disqualify Mr. Jake Brugger as further representation in this matter.
 - 11 • Disqualify the Metropolitan Public Defenders office in its entirety due to the
 - 12 imputed conflict.
 - 13 • Assign independent legal counsel who is not associated with the firm to safeguard
 - 14 the Defendant's constitutional rights.
 - 15

16
17 Dated this 25th day of September 2025

18
19 Respectfully Submitted,

20 /s/ Barry Washington

21 BARRY WASHINGTON
22 PO BOX 1572
23 Portland OR, 97207
24 971.266.1857
25 barrywashington.bw@gmail.com
26
27
28

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,
Plaintiff,

Case No.: 25CN02140

vs.

BARRY WASHINGTON,
Defendant

~~ORDER GRANTING~~ MOTION FOR
PREPARATION OF TRANSCRIPT AT
STATE EXPENSE

This matter came before the Court on Defendant's Motion for Preparation of
Transcript at State Expense. The Court, having reviewed the motion and being fully advised,

IT IS HEREBY ORDERED that the transcript of the proceedings held on [insert
date(s) of hearing(s)] shall be prepared at state expense pursuant to ORS 138.500. The transcript
shall be provided to Defendant and counsel promptly upon completion.

**DENIED. Defendant represented
by counsel.**

9/26/2025 11:35:11 AM



Circuit Court Judge, Rebecca Guptill

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

September 26, 2025

Washington County Deputy District Attorney
150 North 1st Ave, Ste 300
Hillsboro OR 97124

Re: State of Oregon vs Barry Trenell Washington
Case #: 25CN02140 Procedural Matters - Contempt of Court Punitive

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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

September 26, 2025

Jake Robert Brugger
Metro Public Defender Inc
400 E Main St Ste 210
Hillsboro OR 97123

Re: State of Oregon vs Barry Trenell Washington
Case #: 25CN02140 Procedural Matters - Contempt of Court Punitive

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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

vs.

BARRY WASHINGTON,

Defendant

Case No.: 25CN02140

MOTION TO MAKE MORE DEFINITE
AND CERTAIN REGARDING CAUSE OF
ACTION, VICTIM DESIGNATION, AND
VRO MISLABELING

Defendant, appearing before this Court, respectfully moves for an order requiring the State to make its pleadings more definite and certain by clarifying the precise cause of action in this matter, striking the designation of a “victim” from the service contacts and case record, and correcting the mislabeling of this case as “VRO.”

I. Basis for Motion

1. This proceeding arises from an allegation of contempt for violation of a release agreement.
2. Contempt is an offense against the authority of the Court, not a separate criminal charge with a private victim.
3. The service contacts in this case, however, list an individual as “victim.”
4. Defendant has personally reviewed the case record and noticed that the matter is also designated as “VRO,” which ordinarily refers to Violation of Restraining Order.
5. Defendant has never been subject to a restraining order, and no such order exists to be violated.

MOTION TO MAKE MORE DEFINITE AND CERTAIN REGARDING CAUSE OF ACTION, VICTIM
DESIGNATION, AND VRO MISLABELING - 1

- 1 6. The combination of a “victim” designation and a “VRO” label creates substantial
2 confusion as to whether the State is prosecuting a contempt matter or improperly
3 conflating it with a prior, disposed criminal case.
4
5 7. This error is not harmless; but demonstrates a material misrepresentation and obscures
6 the true nature and the cause of action. It risks misleading the Court, the parties, and any
7 reviewing tribunal.

8 **II. Legal Authority**

- 9 8. ORS 33.015 defines contempt as conduct that disobeys or resists the authority of the
10 court. It is not a victim-driven proceeding.
11
12 9. ORS 163.750 defines Violation of Restraining Order as a separate statutory offense
13 requiring the existence of a valid restraining order.
14
15 10. Due process requires that a defendant be given clear notice of the nature of the accusation
16 and the parties to the proceeding.
17
18 11. ORCP 21 D authorizes a motion to make pleadings more definite and certain where they
19 are vague, ambiguous, or otherwise fail to provide sufficient clarity.
20
21 12. Courts have inherent authority to ensure their records accurately reflect the true nature of
22 the action before them.

23 **III. Prejudice and Harm**

- 24 13. The improper designation of a “victim” and the mislabeling of this case as “VRO” risk
25 misleading the Court and prejudicing Defendant’s ability to prepare a defense.
26
27 14. These errors may improperly expand the scope of participation or rights afforded to
28 individuals not properly parties to a contempt action.

1 15. Defendant is entitled to a clear and accurate record that reflects the true nature of the
2 cause of action.

3 **IV. Relief Requested**

4 16. Defendant respectfully requests that this Court:

- 5
6 (a) Order the State to clarify on the record the precise cause of action being pursued in this
7 matter;
8 (b) Strike the “victim” designation from the service contacts and case record;
9 (c) Correct the mislabeling of this case as “VRO” to reflect its true nature as a contempt
10 proceeding; and
11 (d) Direct that all future filings and proceedings reflect the correct characterization of this
12 matter.
13

14
15 Dated this 29th day of September, 2025
16

17
18 Submitted by:

19 BARRY WASHINGTON
20 Defendant
21 PO Box 1572
22 Portland OR, 97207
23 barrywashington.bw@gmail.com
24
25
26
27